

of...causing injury.” Civ. Code § 3294(c)(1)-(3). “Mere negligence, even gross negligence, is not sufficient to justify such an award” for punitive damages. *Kendall Yacht Corp. v. United California Bank* (1975) 50 Cal. App. 3d 949, 958.

For an employer to be liable for punitive damages for the actions of an employee, it must be shown that “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” Civ. Code § 3294(b). “With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” *Ibid.*

The Court finds Defendants’ separate statements of undisputed facts in support of summary adjudication of the cause of action for intentional tort (battery), which reference Defendants’ evidence, suffice to establish that one or more elements of the claim fail as a matter of law. Specifically, the undisputed facts show that the cause of action for intentional tort (battery) has no merit for the following reasons: none of the CB Defendants physically touched Plaintiff or put in motion causing Plaintiff to be touched on the day of the incident (SSUMF ## 4, 6, 9); none of the CB Defendants created or placed the bear mat in front of the front door to the premises (SSUMF ## 3, 5, 7, 9); there is no evidence the CB Defendants caused Plaintiff to be touched with the intent to harm or offend him (SSUMF ## 3-15). More, the undisputed facts as to the prayer for punitive damages as to these Defendants show that the claim for punitive damages has no merit for the following reasons: there is no evidence any of the CB Defendants ever intended to harm or injure Plaintiff prior to the incident (SSUMF ## 11, 14, 15); there is no evidence any of the CB Defendants either intentionally omitted information about the bear mat (SSUMF # 11) or had actual knowledge of the presence of the bear mat at the premises prior to the (SSUMF # 13, 15). Additionally, there is no evidence that an officer, director, or managing agent of the corporation Defendants had advance knowledge or intended to harm Plaintiff. (SSUMF # 11, 13-15).

Conclusion

Accordingly and considering the shifting of the burden of proof to Plaintiff, who has not opposed the motion, the unopposed motion for summary adjudication is granted.

6. CU0001398 Brianna Vigrass v. Avian Borden, et al.

No appearance required. Petitioner’s Second Amended Petition is approved without additional appearance taking note Petitioner, the minor and counsel appeared previously in this matter, and Petitioner has now filed the second amended petition addressing the issues raised by the Court previously. Accordingly and as indicated by the Court previously, Petitioner’s and counsel’s appearance is waived for today’s proceeding.

7. CU0001662 Pankaj Gupta vs. Bamboo Ide8 Insurance Services et al